

COVERAGE ANALYSIS

April 29, 2026 | step275_verify

Perspective: Landlord

This analysis presents coverage gaps and exposure statements from the landlord's perspective.

Detection focuses on tenant-disfavor asymmetry; tenant-favorable asymmetry is not yet separately surfaced.

DOCUMENT OVERVIEW

Single-document coverage analysis -- no reference template

Parties: MERIDIAN COMMERCIAL PROPERTIES LLC (Landlord) / VANTAGE POINT RETAIL LLC (Tenant)

Property: 4500 Commerce Boulevard, Fairfield, State of Columbia

Lease Type: Retail

Term: 5 years (January 15, 2025 -- 5 years after the Commencement Date)

Renewal: One (1) additional period of five (5) years

Rent: \$15,525.00

Escalation: Lesser of 3% or CPI-U increase annually

Security: Two (2) months' Base Rent, stepping down to one (1) month after Year 2

CAM/OpEx: Triple net lease, proportionate share, 5% cap on controllable CAM increases

Permitted Use: Specialty outdoor and sporting goods, athletic apparel, and related merchandise and services

Key Terms:

- 5-year initial term with one 5-year renewal option at market rate.
 - Base rent of \$15,525.00/month with annual escalations capped at the lesser of 3% or CPI.
 - Triple net lease structure with a 5% annual cap on controllable CAM charges.
 - Security deposit of 2 months' rent, stepping down to 1 month after 2 years of no monetary default.
 - Tenant has a one-time early termination right after the 3rd Lease Year with 180 days' notice and a termination fee.
-

RUN SYNOPSIS

3 require attention, 0 favorable terms, 5 worth reviewing, 10 covered (across 18 issue areas analyzed)

PROVISION CHECKLIST

X Needs Attention: LP-09 Subletting & Assignment, LP-11 Default & Remedies, LP-13 Indemnification & Liability

■ **Worth Reviewing:** LP-02 Rent Escalation, LP-08 Insurance Requirements, LP-10 Alterations & Improvements, LP-12 Early Termination, LP-17 Dispute Resolution

✓ **Covered:** LP-01 Rent & Payment Terms, LP-03 Lease Term & Renewal, LP-04 Security Deposit, LP-05 Permitted Use, LP-06 Maintenance & Repairs, LP-07 Common Area Maintenance (CAM), LP-14 Force Majeure, LP-15 Signage Rights, LP-16 Parking, LP-18 Holdover Provisions

COVERAGE & GAPS

The following provisions are incomplete, missing, or have integrity issues that warrant attention regardless of perspective.

[!] **LP-09 LP-09** — INCOMPLETE

Missing: profit sharing on sublet above base rent, recapture right (landlord can terminate and lease directly), assignment in connection with sale of business

Tenant has limited ability to sublease or assign and no clear path to transfer the lease with a sale of the business, which can block routine exit or financing transactions and reduce the business's marketability. Landlord can capture upside from a profitable sublease and potentially recapture the space to lease directly, leaving Tenant without the expected sublet economics or continuity of occupancy.

[!] **LP-11 LP-11** — INCOMPLETE

Missing: landlord termination right, landlord re-entry right, tenant's right to cure third-party defaults, rent acceleration on default

Tenant faces outsized downside because the defaults/remedies package includes rent acceleration but lacks clear tenant cure rights for third-party defaults, so Tenant can be hit with immediate large payment demands and lose the deal without a reliable fix path. Ambiguous or missing termination and re-entry rights can also trigger messy, fast-moving disputes over possession and enforcement, with Tenant bearing business disruption and legal costs.

[!] **LP-13 LP-13** — INCOMPLETE

Missing: tenant indemnification of landlord scope, landlord indemnification of tenant scope

Tenant faces broad, potentially uncapped liability to protect the landlord without clear limits on what claims are covered, and has no clear right to be indemnified by the landlord for landlord-caused losses. This shifts third-party and operational risk to Tenant and can drive significant defense and settlement costs.

[~] **LP-02 LP-02** — INCOMPLETE

Missing: escalation cap or ceiling, calculation methodology

No rent escalation cap; landlord retains pricing flexibility but bears the dispute risk that comes with uncapped or formula-driven increases

[~] **LP-08 LP-08** — INCOMPLETE

Missing: business interruption coverage, waiver of subrogation

Insurance obligations incompletely defined; landlord lacks reliable recourse against tenant insurers for premises-related losses and has no subrogation waiver to limit cross-claims

[~] **LP-10 LP-10** — INCOMPLETE

Missing: landlord contribution to tenant improvements (if any), removal obligation at lease expiration

Tenant improvement allowance undefined; landlord faces uncertainty over its capital contribution exposure and the scope of improvements it may inherit at lease end

[~] **LP-12 LP-12** — INCOMPLETE

Missing: co-tenancy termination trigger (if applicable)

No tenant early termination right; landlord retains full-term revenue certainty but loses the ability to recapture and re-let the space if a better tenant emerges

[~] **LP-17 LP-17** — INCOMPLETE

Missing: attorney fee allocation (one-way or prevailing party), jury trial waiver, time limit for bringing claims

Dispute framework incomplete; attorney fee allocation and claim limitation periods undefined, creating uncertainty in landlord's enforcement leverage and defense costs

RUN DETAILS

Models Used:

Extraction: Gemini 3.1 Pro (Google)

Processing: 4 API calls total, 2.2 minutes

Pipeline: CAM v2.5.3 -- Constrained Assertion Method

Analysis mode: Analyze (coverage & gaps)

This report was generated by CAM (Constrained Assertion Method). Patent Pending. This is a diagnostic tool and does not constitute legal advice.